

HOUSE BILL 1733

By Moody

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 39, Chapter 17, Part 3; Title 40; Title 49 and
Title 55, Chapter 10, Part 7, relative to
harassment.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-308(e), is amended by
deleting subdivision (1) and substituting:

(1) "Bullying" means an act committed by a school employee or student that
substantially interferes with a victim's educational benefits, opportunities, or
performance; and:

(A) If the act takes place on school grounds, at any school-sponsored
activity, on school-provided equipment or transportation, or at any official school
bus stop, the act has the effect of:

(i) Physically harming the victim or damaging the victim's
property; or

(ii) Knowingly placing the victim or victims in reasonable fear of
physical harm to the victim or damage to the victim's property; or

(B) If the act takes place off school property or outside of a school-
sponsored activity, is directed specifically at a victim or victims and has the effect
of creating a substantial disruption to the education environment or learning
process;

SECTION 2. Tennessee Code Annotated, Section 39-17-308(e), is amended by adding
the following appropriately designated subdivisions:

() "School employee" means an employee of a private school, an LEA, a public charter school, or other public school;

() "Victim" means:

(A) If the act is committed by a school employee, then any student; and

(B) If the act is committed by a student, then another student;

SECTION 3. Tennessee Code Annotated, Section 49-6-4503(b)(3), is amended by adding "and school employee" after "each student".

SECTION 4. Tennessee Code Annotated, Section 49-6-4503, is amended by adding the following as a new subsection:

(e) A teacher or school employee found to have committed an act of harassment, intimidation, bullying, or cyberbullying is subject to dismissal or suspension.

SECTION 5. Tennessee Code Annotated, Section 49-5-501(7), is amended by adding the following as a new subdivision:

(E) Committing an act of harassment, intimidation, bullying, or cyberbullying in violation of the school district's policy adopted in accordance with chapter 6, part 45 of this title;

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.